

Cloud Subcontracting Agreement

Illustrative pre-amendment version

Parties and Background

This Agreement is entered into between the Customer and Provider identified in Schedule A. It concerns the provider subcontracting hosting to hyperscaler. The parties intend to establish clear responsibilities for security, service continuity, incident management and regulatory cooperation.

Agreement

1. Definitions

Services means the cloud, hosting, managed IT, cybersecurity, disaster-recovery or related services described in the applicable service schedule.

Customer Data means information submitted to or processed through the Services by or for the Customer.

Security Incident means an actual or reasonably suspected compromise of the confidentiality, integrity or availability of the Services or Customer Data.

2. Services

The Provider shall provide the Services in accordance with the service description and service levels agreed between the parties. The Provider shall maintain appropriately documented operational and security procedures for the Services.

3. Security

The Provider shall maintain reasonable administrative, technical and physical safeguards appropriate to the nature of the Services. Such safeguards shall include access controls, authentication controls, logging and monitoring, vulnerability management, backup arrangements and incident-response procedures appropriate to the Services.

4. Customer Responsibilities

The Customer shall identify its critical systems and data, maintain appropriate access permissions, and comply with applicable laws and regulatory requirements. The Customer shall promptly notify the Provider of material security requirements relevant to the Services.

5. Third-Party Providers and Subcontractors

The Provider may use subcontractors where permitted by the Agreement. The Provider shall remain responsible for the performance of subcontracted Services and shall maintain appropriate contractual security requirements.

6. Security Incidents

The Provider shall notify the Customer without undue delay after becoming aware of a material Security Incident affecting the Services or Customer Data. The parties shall cooperate in investigation, containment, remediation and evidence preservation.

7. Business Continuity and Disaster Recovery

The Provider shall maintain continuity and recovery measures appropriate to the agreed service levels. Recovery objectives, backup arrangements and testing requirements shall be documented in the relevant service schedule.

8. Audit and Assurance

The Provider shall provide reasonable information and assurance concerning its security controls, including relevant independent assurance reports where available. The Customer may conduct reasonable compliance reviews subject to appropriate confidentiality and operational safeguards.

9. Regulatory Cooperation The parties shall cooperate in relation to applicable cybersecurity and regulatory requirements. The Customer remains responsible for determining its own statutory and regulatory obligations.

11. Confidentiality and Data Protection

Each party shall protect confidential information received from the other. The Provider shall process Customer Data only for authorised purposes and in accordance with applicable data-protection requirements.

12. Termination and Exit

Upon termination, the Provider shall cooperate with an orderly transition and return, export or deletion of Customer Data as agreed, subject to applicable legal retention requirements.

13. Liability

The parties shall allocate liability for security incidents, service failures and breaches in accordance with the commercial terms agreed in the applicable schedule.

14. Governing Law

This Agreement is governed by the laws specified in the execution schedule.

SCHEDULE A SERVICE DETAILS
Customer: IT provider subcontracting hosting to hyperscaler
Service context: IT provider subcontracting hosting to hyperscaler
Regulatory context: Primary vendor uses subcontracted cloud infrastructure
Amendment status: Pre-amendment baseline

SIGNATURES

Customer: _____ Date: _____

Provider: _____ Date: _____